

25CV07227 Robert Wolff vs Meridian Group Real Estate Management Inc et al

County: santa-barbara

Division: Civil Law & Motion

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Motion: Motion: Protective Order

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Tentative Ruling: Robert Wolff vs Meridian Group Real Estate Management Inc et al

Case Number

25CV07227

Case Type

Civil Law & Motion

Hearing Date / Time

Mon, 08/10/2026 - 10:00

Nature of Proceedings

Motion: Protective Order

Tentative Ruling

Robert Wolff v. Meridian Group Real Estate Management, Inc., et al.

Case No. 25CV07227

Hearing Date: August 10, 2026

HEARING: Plaintiff's Motion for Protective Order Limiting Discovery, Or Alternatively, Motion to Quash or Modify Defendant Belinda Sellars' Subpoenas and Limit Scope

ATTORNEYS: For Plaintiff Robert Wolff: Andrew Wolff, Law Offices of Andrew Wolff, P.C.

For Defendant Belinda Sellars: Harry N. Kane, Courtney D. Flannery & Associates

For Defendants Nancy Hinsdale and Hinsdale Rush Trust: Anne S. Cruz, Armijo, Morovati & Shields

For Defendant Meridian Group Real Estate Management, Inc.: T. John Arbucci, Law Offices of Schneider, Hosmer & Ackert

TENTATIVE RULING:

The motion of plaintiff for a protective order limiting discovery or, alternatively, motion to quash or modify defendant Belinda Sellars' subpoenas and limit scope is denied.

Background:

Plaintiff Robert Wolff (Plaintiff) alleges in this case that on August 22, 2025, while walking on a paved sidewalk in the common area of a senior living apartment complex (the Complex) located at 1 El Vedado Lane in Santa Barbara, California, he encountered a hose placed across the walkway for an unreasonable time without any notice or warning despite specific community rules that prohibit this conduct because it is dangerous for the seniors who live at the Complex. (Complaint, ¶¶ GN-1 & Prem.L-1.) Meridian Group Real Estate Management, Inc., (Meridian), the Hinsdale Rush Trust (the Trust), and Nancy Hinsdale (Hinsdale), individually and as Trustee of the Trust, and owned, managed, maintained, supervised, and controlled the subject walkway. (Ibid.) The existence of the hose caused Plaintiff to trip and fall, and sustain injuries to his head, face, neck, and legs. (Ibid.)

Plaintiff immediately checked into the ER where he spent several days in the hospital and thereafter in rehabilitation at an in-patient facility. (Complaint, ¶¶ GN-1 & Prem.L-1.) Plaintiff continues to experience concussion symptoms, dizziness, headaches, and balance issues which have dramatically and negatively altered his quality of life. (Ibid.)

Tenant Belinda Sellars (Sellars) had been using her hose at the time of Plaintiff's fall and, on prior occasions, had regularly engaged in the dangerous and prohibited conduct described above. (Complaint, ¶¶ GN-1 & Prem.L-1.) Meridian, Hinsdale, and the Trust knew that Sellars and other tenants engaged in this prohibited and unsafe practice, and knew or should have known about it prior to the incident, but allowed it to continue for years without doing anything to stop it or to warn Sellars and others in the Complex not to do it. (Ibid.)

On November 19, 2025, Plaintiff filed a complaint against the Sellars, Meridian, Hinsdale, and the Trust, asserting two causes of action: (1) negligence; and (2) premises liability.

On January 5, 2026, Sellars filed an answer to the complaint, generally denying its allegations and asserting nine affirmative defenses.

On February 27, Hinsdale and the Trust filed an answer to the complaint generally denying its allegations and asserting fifteen affirmative defenses.

On March 2, Meridian filed an answer to the complaint, generally denying its allegations and asserting twenty-three affirmative defenses.

On April 22, Plaintiff filed a motion for an order quashing deposition subpoenas for the production of business records issued by Sellars on February 27, 2026, or, alternatively, for a protective order: (1) prohibiting the disclosure of financial and medical records pertaining to Plaintiff's HIV, tuberculosis, and hepatitis status; sickle-cell anemia, urology, drug, and alcohol treatment; mental health; and related worker's compensation claims; (2) prohibiting the disclosure of financial and medical records created more than five years prior to the date of Plaintiff's injury; (3) limiting the disclosure of billing records to those for which Plaintiff seeks economic recovery in this lawsuit; (4) allowing Plaintiff's counsel a "first-look" at any records to be produced; and (5) suspending production of the records, and ordering the destruction or return of any records in defendant's possession, until Plaintiff's counsel has the opportunity for review. (Notice at p. 2.)

In support of the motion, counsel for Plaintiff, Andrew Wolff (attorney Wolff) states that on February 27, 2026, Sellars issued multiple deposition subpoenas for the production of Plaintiff's financial, medical, and billing records with a production date of March 25, 2026, copies of which are attached to attorney Wolff's declaration. (Wolff Dec., ¶ 4 & exhibit A.) Those subpoenas were served on attorney Wolff's office via regular mail, but were not received by attorney Wolff until March 13, 2026. (Wolff Dec., ¶ 4.) Wolff states that each of the deposition subpoenas issued by Sellars seek "[c]omplete documents, pertaining to the head, face, neck and legs from 08/22/2015 to the present' including all billing records and are otherwise limited only by the statement that the subpoenas 'do[] not seek production or disclosure of any records related to reproductive health care.'" (Wolff Dec., ¶ 5.)

Upon receiving the deposition subpoenas issued by Sellars, attorney Wolff assigned their associate, Michelle Endo (attorney Endo), to meet and confer and raise objections to either limit or withdraw the deposition subpoenas. (Wolff Dec., ¶ 6.) Attorney Wolff states that Sellar's counsel refused without justification to consider any limitation of the records sought by the subpoenas or to temporarily suspend or withdraw them while the parties met and conferred. (Wolff Dec., ¶¶ 6-8.)

Attorney Endo states in support of the motion, that on March 25, 2026, they sent a letter to Sellar's counsel regarding the deposition subpoenas issued by Sellars and attached to attorney Wolff's declaration. (Endo Dec., ¶ 4 & exhibit A.) Attorney Endo sent the same letter to Ontellus, who attorney Endo asserts is Sellar's "servicer". (Endo Dec., ¶ 4.) In that letter, attorney Endo asserted objections to the deposition subpoenas on the grounds that they are "overbroad and invasive of Plaintiff's constitutional rights to privacy because they seek records from over ten years ago and because they lack explicit limitations to exclude sensitive information, including sickle-cell anemia, drug and alcohol treatment, mental health, and any worker's compensation claims related to those same categories...." (Endo Dec., ¶ 5.) Attorney Endo requested written confirmation that Sellars would withdraw the subpoenas, destroy any records, and issue new subpoenas with the requested limitations within one week. (Ibid.)

Attorney Endo's declaration also shows that the parties continued their efforts to resolve the dispute on March 26, March 27, and April 2. (Endo Dec., ¶¶ 6-11 & exhibits B-F.)

On April 23, the dismissal without prejudice as to Hinsdale, individually, was entered as requested by Plaintiff.

On July 28, Sellars filed an opposition to Plaintiff's motion. In support of that opposition, counsel for Sellars, Harry N. Kane (attorney Kane), states that Plaintiff's discovery responses show that Plaintiff claims he sustained injuries to his head, face, neck, and legs as a result of the incident at issue in these proceedings; that as a result, he uses a shower chair, a cane, and a walker and has a caregiver to help with daily activities; and that he continues to experience physical symptoms and emotional distress. (Kane Dec., ¶¶ 3 & 5.) For these reasons, attorney Kane asserts, Plaintiff's preexisting health conditions are salient to the personal injury claims asserted in this action. (Kane Dec., ¶ 4.)

Attorney Kane further states that Plaintiff identified in his discovery responses, health care providers from whom Plaintiff received consultation, examination, or treatment for injuries that Plaintiff attributes to the incident. (Kane Dec., ¶ 6.) Those providers include Cottage Hospital; Mission Park Rehabilitation Center; Pueblo Radiology; Dr. Jon Uyesaka; Dr. James Murdoch; Dr. Akinwunmi A. Oni-Orisan; Santa Barbara Neuroscience Center; Dr. Alexander B. Hardwick; and Cottage Cardiology Clinic. (Ibid.)

Based on Plaintiff's discovery responses, on February 27, 2026, attorney Kane issued deposition subpoenas for the production of business records to the custodians of record for each of the health care providers identified by Plaintiff. (Kane Dec., ¶ 7.) According to attorney Kane, those deposition subpoenas are appropriately limited to ten years of medical and billing records and are narrowly tailored to the specific body parts to which Plaintiff claims he sustained injury as a result of the subject incident. (Ibid.)

Attorney Kane further asserts that a proper consumer notice was issued for each deposition subpoena, and that production of the records described in those subpoenas was to be completed on March 25, 2026, at the offices of deposition officer Ontellus. (Kane Dec., ¶¶ 7-8.) Neither attorney Kane nor Ontellus received any written objections to the deposition subpoenas prior to March 25, 2026. (Kane Dec., ¶ 9.) Attorney Kane further states that notice of the present motion was not given to the custodians of record listed in the deposition subpoenas or to Ontellus. (Kane Dec., ¶ 14.)

Attorney Kane's declaration also describes the parties' efforts to resolve their dispute informally. (Kane Dec., ¶¶ 10-11 & exhibit D.)

Analysis:

The available evidence and information shows that on February 27, 2026, Sellars issued twelve deposition subpoenas (collectively, the Subpoenas) that are each directed to the custodian of records for: (1) Santa Barbara Cottage Hospital-Attn: Medical Records Dept.; (2) Santa Barbara Cottage Hospital/Billing Records; (3) Santa Barbara Cottage Hospital/Radiology Department; (4) Acclara; (5) Mission Park Rehabilitation Center; (6) Pueblo Radiology Medical Group, Inc., in Santa Barbara, California; (7) Pueblo Radiology Medical Group, Inc., in Camarillo, California; (8) California Managed Imaging Medical Group; (9) Dr. Jon Uyesaka; (10) Dr. James Murdoch, M.D.; (11) Santa Barbara Neuroscience Center/Dr. Akinwunmi A. Oni-Orisan; and (12) Cottage Cardiology Clinic/Dr. Alexander B. Hardwick). (Wolff Dec., ¶ 4 & exhibit A at pdf pp. 13, 17, 21, 25, 29, 33, 37, 41, 45, 49, 53, & 57; see also Kane Dec., exhibit C.)

Plaintiff does not dispute that the witnesses identified in each of the Subpoenas and described above are not parties to this action. The present record also reflects, without dispute, that each of the Subpoenas issued by Sellars was accompanied by a "Notice to Consumer or Employee and Objection" directed to Plaintiff, stating that Sellars seeks from those witnesses the personal records of Plaintiff on March 25, 2026. (Wolff Dec., exhibit A at pdf pp. 10, 15, 19, 23, 27, 31, 35, 39, 43, 47, 51, & 55; see also Kane Dec., exhibit C.)

The Civil Discovery Act (the Act), codified as Code of Civil Procedure section 2016.010 et seq., sets out the "methods by which litigants can obtain pretrial disclosure of relevant information[.]" (City of Los Angeles v. PricewaterhouseCoopers, LLP (2024) 17 Cal.5th 46, 61.) Relevant here, and subject to exception, "the process by which a nonparty is required to provide discovery is a deposition subpoena." (Code Civ. Proc., § 2020.010, subd. (b); see also Terry v. SLICO (2009) 175 Cal.App.4th 352, 356–357 [discussing nonparty discovery].) "A deposition subpoena may command ... [¶] "[o]nly the production of business records for copying, under Article 4 (commencing with Section 2020.410)." (Code Civ. Proc., § 2020.020, subd. (b).)

Subject to exception which does not appear to apply here, "the provisions of Chapter 2 (commencing with Section 1985) of Title 3 of Part 4 of [the Code of Civil Procedure] apply to a deposition subpoena." (Code Civ. Proc., § 2020.030.) Code of Civil Procedure section 1985.3 defines the terms "personal records" and "consumer". The motion appears to concede that Plaintiff is a "consumer" and that the records described in the Subpoenas are the "personal records" of Plaintiff, as those terms are defined in Code of Civil Procedure section 1985.3. (See Code Civ. Proc., § 1985.3, subd. (a)(1), (2).)

Section 1985.3 provides: "Every copy of the subpoena duces tecum and affidavit, if any, served on a consumer or his or her attorney in accordance with subdivision (b) shall be accompanied by a notice, in a typeface designed to call attention to the notice, indicating that (1) records about the consumer are being sought from the witness named on the subpoena; (2) if the consumer objects to the witness furnishing the records to the party seeking the records, the consumer must file papers with the court or serve a written objection as provided in subdivision (g) prior to the date specified for production on the subpoena; and (3) if the party who is seeking the records will not agree in writing to cancel or limit the subpoena, an attorney should be

consulted about the consumer's interest in protecting his or her rights of privacy. If a notice of taking of deposition is also served, that other notice may be set forth in a single document with the notice required by this subdivision." (Code Civ. Proc., § 1985.3, subd. (e).)

The motion also does not dispute, and appears to concede, that the Subpoenas were accompanied by the notice described in subdivision (e) of Code of Civil Procedure section 1985.3, and that the service of the Subpoenas was accompanied by "a copy of the proof of service of the notice to the consumer described in subdivision (e) of Section 1985.3[.]" (Code Civ. Proc., § 2020.410, subd. (d).)

A deposition that commands only the production of records must "command compliance in accordance with Section 2020.430 on a date that is no earlier than 20 days after the issuance, or 15 days after the service, of the deposition subpoena, whichever date is later." (Code Civ. Proc., § 2020.410, subd. (c).) "Unless the parties, and if the records are those of a consumer as defined in Section 1985.3 or 1985.6, the consumer, stipulate to an earlier date, the custodian of the records shall not deliver to the deposition officer the records that are the subject of the deposition subpoena prior to the date and time specified in the deposition subpoena." (Code Civ. Proc., § 2020.430, subd. (d).)

The undisputed record reflects that the Subpoenas each commanded compliance on March 25, 2026. Plaintiff presents no information or evidence showing that the parties agreed to an earlier date for delivery of the records described in the Subpoenas, or that the custodians of record listed in the Subpoenas failed to comply on that date. There is also no information or evidence which indicates or suggests that, prior to the production date listed in the Subpoenas, Plaintiff "serve[d] on the subpoenaing party, the witness, and the deposition officer, a written objection that cites the specific grounds on which production of the personal records should be prohibited." (Code Civ. Proc., § 1985.3, subd. (g) [also providing as relevant here, that "[n]o witness or deposition officer shall be required to produce personal records ... after receipt of a written objection from a nonparty consumer, except upon order of the court in which the action is pending or by agreement of the parties, witnesses, and consumers affected."].)

For all reasons discussed above, the present record supports a presumption that the records described in the Subpoenas were delivered by the custodians of records to the deposition officer listed in the Subpoenas on March 25, 2026. (*Pinello v. Taylor* (1933) 128 Cal.App. 508, 512; Civ. Code, § 3548.)

"Any consumer whose personal records are sought by a subpoena duces tecum and who is a party to the civil action in which this subpoena duces tecum is served may, prior to the date for production, bring a motion under [Code of Civil Procedure] [s]ection 1987.1 to quash or modify the subpoena duces tecum. Notice of the bringing of that motion shall be given to the witness and deposition officer at least five days prior to production. The failure to provide notice to the deposition officer shall not invalidate the motion to quash or modify the subpoena duces tecum but may be raised by the deposition officer as an affirmative defense in any action for liability for improper release of records." (Code Civ. Proc., § 1985.3, subd. (g).)

In their opposition, Sellars contends that the motion is untimely, deficient, and should be denied because it was not brought prior to the production date described above, and because Plaintiff has failed to give notice of the bringing of the motion to the custodians of record or deposition officer identified in the Subpoenas within the time prescribed in Code of Civil Procedure section 1985.3.

The proof of service of the motion filed by Plaintiff on April 22, 2026, does not list the witnesses or the deposition officer identified in the Subpoenas. In their reply to Sellars' opposition, Plaintiff presents no information or evidence showing that notice of the motion was given to those nonparties.

Though "[t]he time limits mentioned in the procedure for bringing the motion are obviously designed to guide those involved as to when the witness with the records may safely honor or not honor the subpoena when the consumer objects", the procedure set forth in Code of Civil Procedure section 1985.3 does not "suggest[] that a court lacks jurisdiction to consider a motion to quash if it is brought after the date set forth in the subpoena for production." (*Slagle v. Superior Court* (1989) 211 Cal.App.3d 1309, 1312.)

Further, and for the reasons discussed above, a failure to provide notice to the deposition officer does not invalidate the motion. Sellars also presents no evidence or information showing why the records described in the Subpoenas were not produced on March 25, 2026. For these reasons, and to the extent the records were produced on March 25, 2026, it does not appear that any defect in the giving of notice of the motion caused Sellars or any nonparty witness to suffer prejudice. (Carlton v. Quint (2000) 77 Cal.App.4th 690, 697 [general discussion]; Arambula v. Union Carbide Corp. (2005) 128 Cal.App.4th 333, 343 [discussing purpose of the requirement of giving notice].)

Though the defects in the giving of notice do not appear to have caused any prejudice based on the available evidence and information presented by the parties, the failure to give notice of the motion to each of the witnesses described in the Subpoenas raises due process concerns in regard to whether those witnesses have been provided with an opportunity to respond to the motion, including as to which, if any, records have been withheld or have been produced pursuant to the Subpoenas. (Derry v. Superior Court of Los Angeles County (1968) 266 Cal.App.2d 556, 561 [failure to provide notice was “a denial of due process.”].)

As to the contention that Plaintiff failed to meet and confer in good faith, Code of Civil Procedure section 1987.1 does not require a party making a motion to quash or for a protective order to meet and confer. (Cf. Code Civ. Proc., § 1985.3, subd. (g) [requiring that a motion to enforce a subpoena “be accompanied by a declaration showing a reasonable and good faith attempt at informal resolution of the dispute”].) Furthermore, “[t]he record of correspondence between the parties provides adequate support for the finding that the parties were at an impasse[.]” (Clement v. Alegre (2009) 177 Cal.App.4th 1277, 1294.)

Though the court may, for all reasons discussed above, consider the present motion notwithstanding that it was brought after the production date set forth in the Subpoenas, California Rules of Court, rule 3.1345(a), requires that the motion be accompanied by a separate statement. (Cal. Rules of Court, rule 3.1345(a)(5).) Plaintiff has failed to submit with the motion a separate statement in compliance with rule 3.1345. The motion also fails to present any information or evidence showing why a separate statement is not required under the circumstances present here. (See Cal. Rules of Court, rule 3.1345(b)(1), (2).)

Furthermore, though Code of Civil Procedure section 1987.1 authorizes an order quashing the Subpoenas entirely as requested in the motion, Plaintiff also seeks orders modifying the Subpoenas, or conditioning compliance with the Subpoenas “upon those terms or conditions as the court shall declare, including protective orders[.]” (Code Civ. Proc., § 1987.1, subd. (a).) The motion also effectively requests orders to “protect [Plaintiff] from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of [Plaintiff].” (Ibid.) For the reasons discussed below, the absence of a separate statement causes the motion to be without factual or legal support, creates confusion, and forces the court to search a myriad of different categories and types of records described in the Subpoenas to determine the reasons why each Subpoena should be quashed, modified, or subject to a protective order.

A party “may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.010.) “For discovery purposes, information is relevant if it ‘might reasonably assist a party in evaluating the case, preparing for trial, or facilitating settlement....’ [Citation.] Admissibility is not the test and information, unless privileged, is discoverable if it might reasonably lead to admissible evidence.” (Gonzalez v. Superior Court (1995) 33 Cal.App.4th 1539, 1546, original italics.)

The motion concedes that the Subpoenas seek the production of Plaintiff’s medical and medical billing records. Available information and evidence, including the allegations of the complaint show that Plaintiff has placed his medical condition, and the medical expenses incurred by Plaintiff as a result of the incident, at issue in this case. (See, e.g., Complaint, ¶¶ 11 [claiming hospital and medical expenses]; Kane Dec., exhibit B [Plaintiff’s discovery responses describing injuries sustained as a result of the fall and medical providers who examined or treated those injuries].) “By thus putting his own medical condition at issue, [Plaintiff] has ‘substantially lowered’ his expectation of privacy [Citation.]” (John B. v. Superior Court (2006) 38 Cal.4th 1177, 1199.) Therefore, to the extent the Subpoenas command production of medical or billing records relevant to the injuries and damages claimed by Plaintiff in these proceedings, and for all reasons discussed above, it would appear that the Subpoenas are valid and that the records should be produced. (People ex rel. Dept. Pub. Wks. v. Younger (1970) 5 Cal.App.3d 575, 579 [motion to quash tests the “validity” of a subpoena]; In re R.R. (2010) 187 Cal.App.4th 1264, 1277 [“A motion to quash provides the trial court with the opportunity to determine whether documents should be produced

pursuant to the underlying subpoena.”.)

To the extent the motion alternatively seeks a protective order modifying or conditioning compliance with the Subpoenas as to only some of the listed records, this would require, as to each category or type of record for which a protective order is sought, an item-by-item review and analysis to determine which, if any, records should not be produced, and why.

For example, the deposition subpoena to Santa Barbara Cottage Hospital's medical records department commands the production of “[a]ll forms/questionnaires completed by, or on behalf of, the patient, documents, correspondence, correspondence from the patient or patient's attorney, intake forms, medical reports, doctor's entries, nurse's notes, medication administration records, office notes, progress reports, cardiology reports, radiology reports, x-ray reports, MRI reports, CT reports, myelogram reports, lab reports, pathology reports, monitor strips, physical therapy records, occupational therapy records, case history, emergency records, outpatient records, diagnosis and prognosis documentation, admit and discharge records, and notation(s) on any file folder. All emails between physicians and the patient regarding physical complaints, symptoms, and treatment, including secure messages.” (Wolff Dec., exhibit A at pdf p. 14.)

The deposition subpoena to Santa Barbara Cottage Hospital's billing records commands the production of “Complete billing records, pertaining to the head, face, neck, and legs from 08/22/2015 to the present, including but not limited to any records/documents that may be stored digitally and/or electronically: charges, explanation of benefits, payments, adjustments, write-offs, balances due, and itemized billing charges pertaining to any and all care, treatment, and/or examinations. All billing emails between physicians and the patient, including secure messages. [¶] All documents relating to the contractual relationship between a third party purchaser of any medical liens or accounts receivable, including but not limited to factoring companies, and the facility this request is directed to, including all documents disclosing the purchase price of any medical liens or accounts receivable related to services rendered to the claimant listed below as a result of the accident of the incident date(s) listed below pertaining to the head, face, neck, and legs from 08/22/2015 to the present. [¶] All documents regarding any compensation received and/or to be received by the facility this request is directed to for services rendered or to be rendered to the claimant listed below as a result of the accident of the incident date(s) listed below pertaining to the head, face, neck, and legs from 08/22/2015 to the present.” (Wolff Dec., exhibit A at pdf p. 18.)

The deposition subpoena to Santa Barbara Cottage Hospital's Radiology Department commands the production of “[c]omplete radiology images of any sort pertaining to the head, face, neck, and legs from 08/22/2015 to the present, including but not limited to any items that may be stored digitally and/or electronically: x-rays, MRI's, CT's, myelograms, tomograms, MRA's, PET scans, CAT scans, fluoroscopy, discograms, EMG's, and diagnostic studies.” (Wolff Dec., exhibit A at pdf p. 22.)

The motion fails to explain, on a point-by-point basis supported by factual and legal argument, why the records described above pertain to Plaintiff's HIV, tuberculosis, or hepatitis status; sickle-cell anemia; urology; drug and alcohol treatment; mental health; or worker's compensation claims. The motion also fails to explain why the billing records described in the Subpoenas do not relate to those for which Plaintiff seeks economic recovery in this action.

The examples provided above are intended to be illustrative but not exhaustive. For all reasons discussed above, the present motion must be accompanied by a separate statement setting forth, on an item-by-item basis, each specific record or categories of records for which Plaintiff seeks a protective order, and the factual and legal reasons why those records should not be produced pursuant to a protective order. For these same reasons, the absence of a separate statement forces the court to conduct its own review of each of the Subpoenas, and for each record or category of records, to effectively guess which, if any, should not be produced, and why.

In addition, though Plaintiff contends that the motion seeks only a protective order limiting discovery, and that other parties have agreed to the same limitations, the motion fails to present any reasoned factual and legal argument showing why a protective order is appropriate as to any records ostensibly produced as commanded in the Subpoenas, or why, in light of the claims asserted by Plaintiff in this action, “the burden, expense, or intrusiveness of that discovery clearly outweighs the likelihood that the information sought will lead to the discovery of admissible evidence.” (Code Civ. Proc., § 2017.020, subd. (a).)

Under the circumstances present here, and for all reasons discussed above, the court will deny Plaintiff's motion. (Mills v. U.S. Bank (2008) 166 Cal.App.4th 871, 893 [court had discretion to deny motion for failure to comply with separate statement requirements]; Golf & Tennis Pro Shop, Inc. v. Superior Court (2022) 84 Cal.App.5th 127, 137–138 [discussing adequate notice].)

The court's ruling herein is without prejudice to any appropriate, noticed motion for a protective order that may be filed and served by Plaintiff in the future in regard to any records that were produced pursuant to the Subpoenas.

Sanctions:

Plaintiff's motion does not include a request for sanctions. Sellars contends that, because the motion is defective and meritless, and Plaintiff failed to meet and confer in good faith, an award of monetary sanctions against Plaintiff and his counsel of record is warranted to compensate Sellars for costs and attorney's fees incurred to oppose the motion.

Subject to exception not applicable here, "in making an order pursuant to motion made under subdivision (c) of Section 1987 or under Section 1987.1, the court may in its discretion award the amount of the reasonable expenses incurred in making or opposing the motion, including reasonable attorney's fees, if the court finds the motion was made or opposed in bad faith or without substantial justification or that one or more of the requirements of the subpoena was oppressive." (Code Civ. Proc., § 1987.2, subd. (a).)

Under the totality of the circumstances here, the court does not find, at this stage of the proceedings, that the motion was made in bad faith or without substantial justification. For these reasons, the court will deny Sellar's request for an award of sanctions.

Judges

Judge Colleen Sterne

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